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Impact of

INDIAN PRIVACY LAWS

ON DESIGN AND AI

Start

WHY PRIVACY MATTERS?

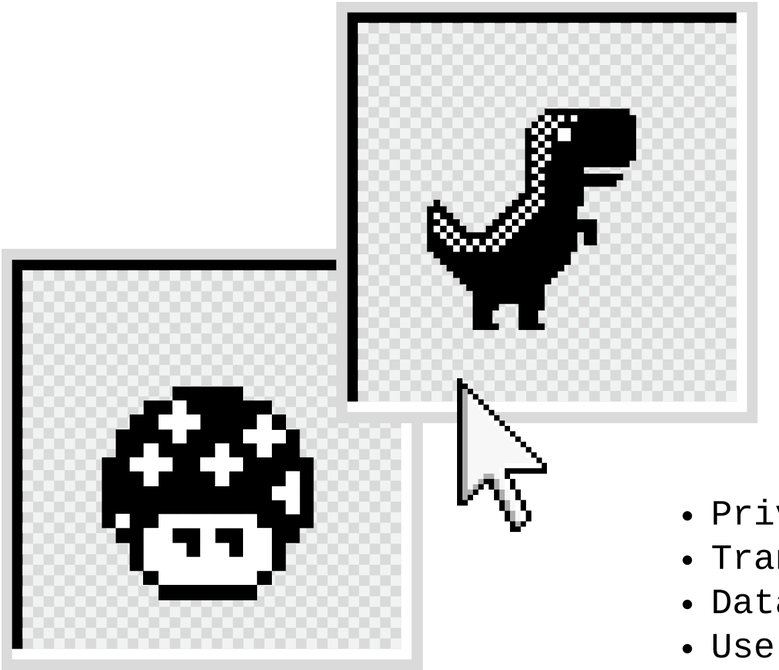
- Massive growth of digital data
- Companies and AI systems collect personal information
- Privacy risks: surveillance, misuse, identity theft
- Need for regulation and protection

EVOLUTION OF PRIVACY IN INDIA

- Privacy not explicitly recognized in Indian Constitution earlier
- 2017 landmark case: Justice K.S. Puttaswamy vs Union of India
- Supreme Court declared Right to Privacy a fundamental right under Article 21
- Led to development of Indian data protection laws
- Global influence from General Data Protection Regulation (GDPR)

DIGITAL PERSONAL DATA PROTECTION ACT (2023)

- Introduced as India’s main data protection law
- Regulates collection, storage, and processing of personal data
- Defines roles: Data Principal, Data Fiduciary, Data Processor
- Emphasizes consent, limitation and minimization
- Grants individuals rights over their personal data
- Heavy penalties for misuse



IMPACT ON PRODUCT DESIGN

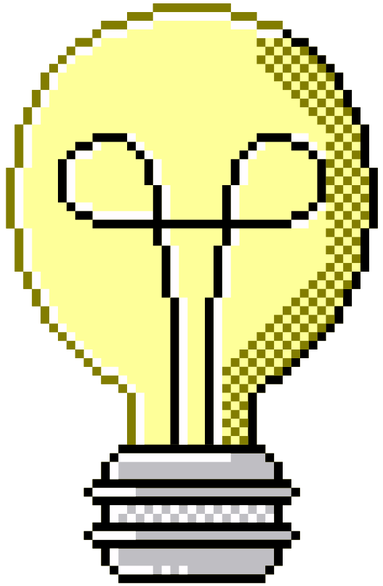
- Privacy by Design approach
- Transparent consent interfaces
- Data minimization in system design
- User control and privacy dashboards
- Secure data handling and storage

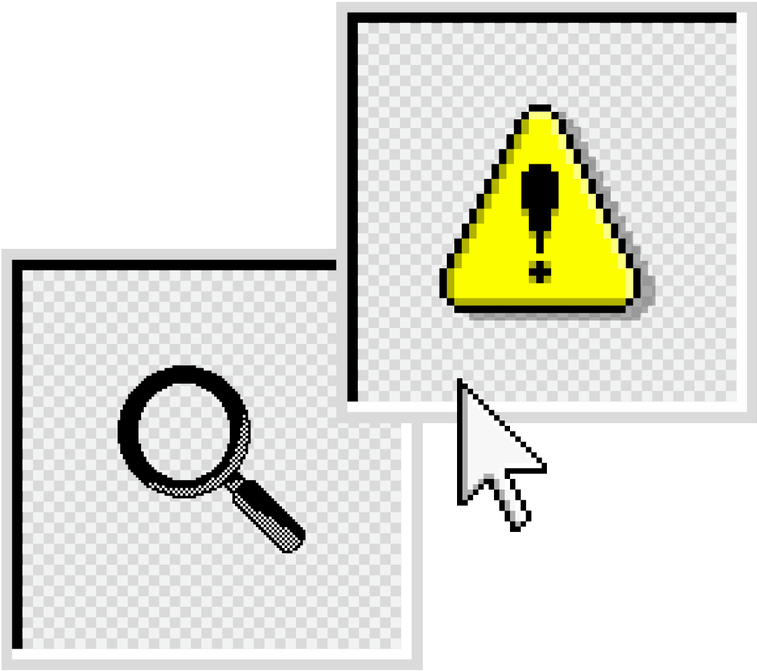
IMPACT ON AI

- AI relies on large datasets
- Personal data used for training models
- Privacy risks: re-identification & surveillance
- Algorithmic bias and fairness concerns
- Need for privacy-preserving AI methods

PRIVACY-PRESERVING AI TECHNIQUES

- Federated Learning
- Differential Privacy
- Data Anonymization & Synthetic Data
- Goal: train AI while protecting personal data





CASE STUDY: FACIAL RECOGNITION AND LIMITS OF PRIVACY LAW

- Facial recognition uses biometric personal data
- Often deployed in public spaces without explicit consent
- Risk of surveillance and misidentification
- Raises questions about regulation and accountability
- Highlights gaps in existing privacy laws

CONCLUSION

- Privacy is now a fundamental right in India
- The Digital Personal Data Protection Act, 2023 regulates personal data use
- Privacy laws influence how digital systems and AI are designed
- New technologies require privacy-preserving AI techniques

THANK YOU

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